

Crl.Appeal No.290-2014

Arshad Mehmood

Abdul Haq, etc.

26.09.2014. Sardar Shahid Hanif, Advocate.

Through instant appeal against acquittal in term of Section 417 (2-A) of Cr.P.C, the appellant-Arshad Mehmood has challenged the judgment dated 22.09.2012 passed by the learned Magistrate Section 30, Talagang whereby the accused-respondents No.1 to 3 charged in case FIR. No.75-2008 dated 09.06.2008 under Sections 324, 34, 109, P.P.C., registered at Police Station, Tamman, District, Chakwal were acquitted of the charges levelled against them on the application under Section 249-A of Cr.P.C.

2. The brief and essential facts are that the appellant-complainant got registered the above stated case against respondents No.1 to 3 for making a murderous assault on the complainant when he was ploughing his land on 08.06.2009 at 11:30 a.m. and thereafter at his house on the same day but he escaped unhurt. Abdul Qadoos etc made firing on the complainant on the instigation of Abdul Haq-respondent No.1. On completion of the investigation, the accused were sent up for trial. The charge

was framed against the accused-respondents No.1 to 3 on 26.02.2011, thereafter respondents No.1 to 3 moved an application under Section 249-A of Cr.P.C. before the learned trial court on 08.02.2012 which was dismissed by the learned trial court on 17.04.2012. Thereafter the accused-respondents were acquitted on 01.07.2008 in case FIR. No.86 of 2009 registered under Section 13/20/65 of Arms Ordinance at Police Station, Tamman. After acquittal of the accused in F.I.R. No.86 of 2009, the respondents No.1 to 3 moved second application under Section 249-A of Cr.P.C. before the learned trial court which was accepted and they were acquitted vide judgment dated 22.09.2012.

3. Learned counsel for the appellant stated that there was substantial evidence on the record in shape of oral evidence and there was chance of recording conviction against the respondents No.1 to 3; that the impugned judgment is result of mis-reading of record, hence, liable to set aside.

4. Arguments heard and record perused.

5. From the available record, it is admitted fact that alleged occurrence took place on 08.06.2009 at 11:30 a.m. whereas alleged occurrence was reported to the police on 09.06.2009 at 6:35 p.m. with delay of one day and 7:35 hours for which no

plausible explanation has been furnished. The allegation against the respondents No.2 and 3 is that they on the instigation of respondent No.1 made ineffective firing at the complainant-appellant. It is an admitted position that the Investigating Officer has failed to collect any crime empties from the place of occurrence although in the F.I.R. it is mentioned that indiscriminating firing was made by the accused. It is an admitted fact that son of the complainant produced empties before the Investigating Officer on 17.06.2008 and same is not free from doubt, as same were alleged empties of bullets fired at the spot. It is also hardly believable that the complainant has totally escaped and remained unhurt in presence of indiscriminating firing resorted by the respondents and the complainant did not suffer even a scratch on his person.

6. In these circumstances, the learned trial court had rightly come to the conclusion that there was no chance of the conviction of the respondents No.1 to 3. It is well settled proposition of law that an acquittal order is interfered with only in exceptional cases to avoid miscarriage of justice. The findings of the learned trial court did not suffer from any perversity, illegality or infirmity and the same is based on sound and cogent reasons warranting no interference by this Court.

7. Consequently, I find no substance in this appeal which is accordingly **dismissed in limine**.

(Aalia Neelum)
Judge

Approved for reporting

A.S.Khan.